

4.

CASE #	CASE NAME	HEARING NAME
CVRI2205313	JANE DOE #1 VS COUNTY OF RIVERSIDE	MOTION TO SEVER ON 1 ST AMENDED COMPLAINT FOR OTHER NON-PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT OF JANE DOE #1

Tentative Ruling:

The Court's tentative decision is to allow severance of Doe #2's claims from the claims of Doe #3 and Doe #4.

This Court is not fully convinced that the issue of severance was fully decided by Judge Choi on 10/6/2025. On 8/19/2025, Plaintiff filed a motion for leave to file a first amended complaint and continue the 10/31/2025 trial date. The issue Judge Choi was facing was whether to allow Plaintiff leave to file a First Amended Complaint and continuance of the trial date. In their opposition, Defense offered a limited opposition and offered as an alternative (pg. 3, ¶ 3 and 4) to sever the claims of Doe #2 from the claims of Does #3 and #4. The Court granted leave to file the First Amended Complaint without bifurcation of any of the Plaintiffs and signed an order on 11/4/2025 (filed 11/5/2025). However, no tentative or written decision was filed by the Court, and this Court cannot see what, if anything, was considered by Judge Choi in regard to the issue of bifurcation/severance. Accordingly, this Court will hear the motion filed by Defense on 2/11/2026 asking to sever/bifurcate the claims of Does #3 and #4 from the claims of Doe #2 under CCP 1048 and at the very least under CCP 598.

It seems to the Court that the allegations of Doe #2 are separate and distinct from the allegations of Does #3 and #4 to warrant granting the Defense motion to sever. Doe #2's claims arise while Deputy Duffy was unquestionably acting in his capacity as a Riverside County Deputy Sheriff. Whereas, that fact is at issue as to Does #3 and #4. Doe #2's single claim arises from conduct in 1993 where the claims for Doe #3 and Doe #4 arise from conduct in 2009 and 2010. Although each allegation concerns the same Defendant (Duffy) and centers on sexual misconduct, the similarities and commonalities of fact and law end there.

Additionally, it does not appear to the Court that there would be an issue of cross admissibility under Evidence Code section 1101 which would allow Plaintiff to offer evidence of other crimes or civil wrongs to prove some fact other than propensity, such as motive, opportunity, intent, preparation, plan, knowledge, identity, absence of mistake or accident, or whether a defendant in a prosecution for an unlawful sexual act or attempted unlawful sexual act did not reasonably and in good faith believe that the victim consented. Consent is not at issue when the victims are minors.

The Court agrees that the prejudicial effect of having the same jury that is deciding the issues concerning Does #3 and #4 hearing evidence of "alleged" sexual misconduct from 1993 under different circumstances would outweigh any probative

value that evidence might have to the issues concerning Does #3 and #4 in 2009 and 2010.

For these reasons, the Court grants severance.